

Case	Title / Nature of Case
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2:00 PM

LINE: 1

20-CIV-04800

MALAK ALSHAQRONI, ET AL VS. EL CAMINO INN, ET AL

MALAK ALSHAQRONI
EL CAMINO INN

IIAN N. ROSEN JANFAZA
GREGORY R. DE LA PENA

PLAINTIFFS MALAK ALSHAQRONI AND ZEIAD ENGAB’S MOTION TO COMPEL DEPOSITION OF PERSON MOST QUALIFIED OF DEFENDANT, BALBOA HOTEL LLC dba EL CAMINO INN; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT AND COUNSEL OF RECORD, JOINTLY AND SEVERALLY

TENTATIVE RULING:

Plaintiffs’ motion to compel the deposition of Defendant Balboa Hotel LLC dba El Camino Inn’s person most qualified (“PMK”) is **GRANTED**. Plaintiffs’ request for monetary sanctions is **GRANTED**.

Any party may obtain discovery “by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) Service of a deposition notice is effective to require a party deponent, or an officer, director, managing agent, or employee of a party, to attend, testify, and produce documents, electronically stored information, or tangible things for inspection and copying. (Id., § 2025.280, subd. (a).) If, after service of a deposition notice, a party-affiliated deponent fails to appear, proceed, or produce documents without having served a valid objection under section 2025.410, the party who gave the notice may move to compel attendance, testimony, and production. (Id., § 2025.450, subd. (a).) The motion must be accompanied by a meet-and-confer declaration or, when the deponent failed to attend, “by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Id., subd. (b)(2); *Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

On November 26, 2025, Plaintiffs served Defendants by email with a Notice of PMK Deposition set for December 10, 2025. (Toma Decl., ¶ 1, Ex. A.) Defense counsel’s office replied, “Thank you, Ilan,” two days later, on November 28, 2025. (Id., ¶ 3, Ex. B.) That same day, Plaintiffs served an Amended Notice of PMK Deposition moving the scheduled date one day later, to December 11, 2025. (Id., ¶ 4, Ex. C.)

On December 9, 2025, Plaintiffs emailed Defendants to confirm that the PMK deposition would go forward as noticed on December 11, 2025. (Id., ¶ 6, Ex. E.) Defense counsel’s office responded that it had December 10 calendared for the deposition and attached a copy of the deposition notice that had been marked with the note, “LCD to object by email: 12/4/25.” (Id., ¶ 7, Ex. E.) Plaintiffs responded that the amended notice had been sent to the same email addresses as the initial notice. (Id., ¶ 8, Ex. E.)

Defense counsel contacted Plaintiffs’ counsel on December 9 and 10, 2025, stating on both occasions that service was defective and that Plaintiffs’ counsel had not consulted on mutually agreeable dates before serving the notice. Defense counsel stated that, for those reasons, Defendants would not produce a witness for deposition. (Id., ¶¶ 9, 12, Exs. F, G.) On both occasions, Defendants’ counsel did not provide any alternative dates for the deposition. (Ibid.)

Defendants did not oppose this motion. The Court is not persuaded by the reasons Defendants gave before the motion was filed. Although consulting with opposing counsel regarding deposition availability before serving a deposition notice is a common courtesy, nothing in Code of Civil Procedure section 2025.230 requires the noticing party to confer about the deposition date before serving notice.

A party served with a deposition notice waives any error or irregularity in the notice unless that party promptly serves a written objection specifying the error or irregularity at least three calendar days before the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).) Defendants did not serve a timely written objection, move to stay and quash the notice, or seek an ex parte order extending time. (See id., subd. (c).)

Defendants apparently told Plaintiffs that they accept service only at calendaring@dlphlaw.com, which was not included among the email addresses used by Plaintiffs. (Toma Decl., Ex. F.) However, defense counsel's office acknowledged service of Plaintiffs' initial notice by replying, "Thank you, Ilan." (Id., Ex. B.) Within two hours of that acknowledgment, Plaintiffs sent an amended notice moving the deposition date one day later. (Id., Ex. C.) When confusion regarding the date arose, Defendants acknowledged that the initial date, December 10, 2025, was on their calendar and sent Plaintiffs a copy of the deposition notice on which they had added the note, "LCD to object by email: 12/4." (Id., Ex. E.)

Based on those facts, the Court finds that Defendants accepted service at the email addresses to which Plaintiffs served the notices and had ample time to object, meet and confer, or seek relief from the Court if the parties could not agree to a different date. Defendants failed to do so and had no lawful basis to refuse to appear and produce a PMK witness at the deposition.

If a motion to compel under Code of Civil Procedure section 2025.450, subdivision (a), is granted, the Court must impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) The Court may also impose monetary sanctions against an attorney advising misuse of the discovery process. (Id., § 2023.030, subd. (a).)

Plaintiffs request \$2,850 in attorney's fees for six hours of work on this motion at \$475 per hour, plus the \$60 filing fee, for a subtotal of \$2,910. Plaintiffs also request \$1,074.80 for the stenographer's cost for the deposition at which Defendants did not appear. (Toma Decl., ¶¶ 14-20, Exs. H, I.)

Plaintiffs' attorney's fees request includes two hours of estimated time for preparing a reply to any opposition and attending the hearing. Because Defendants did not file an opposition, the estimated fee for those two hours will not be incurred and is excluded.

Accordingly, Plaintiffs' motion to compel is **GRANTED**. After serving notice of the order on this motion, Plaintiffs may serve a new notice resetting the PMK deposition that had previously been scheduled for December 11, 2025.

Plaintiffs' request for sanctions is **GRANTED** in the amount of \$1,900 in attorney's fees (four hours at \$475 per hour) and \$1,134.80 in costs for the filing fee and stenographer's fee, for total sanctions of \$3,034.80 against the Law Offices of De la Pena and Holiday, LLP and Defendant Balboa Hotel LLC dba El Camino Inn, jointly and severally.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 2

23-CIV-00632

AIXTEK, A CALIFORNIA CORPORATION VS. THE COUNTY OF SAN MATEO

AIXTEK, A CALIFORNIA CORPORATION
THE COUNTY OF SAN MATEO

JOHN PETER SHEARER
DANIEL T. MCCLOSKEY

DEFENDANT COUNTY OF SAN MATEO'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSION NOS. 33 43 AND CORRESPONDING FORM INTERROGATORIES, SET TWO

TENTATIVE RULING:

The Court does not decide the merits of the County's Motion to Compel Further Responses to Request for Admission Nos. 33–43 and Corresponding Form Interrogatories, Set Two. That motion concerns discovery responses, discovery objections, Form Interrogatory No. 17.1, and related monetary sanctions, and it is likewise within the scope of the discovery referee's appointment. The motion is referred back to the Honorable Timothy R. Volkmann (Ret.) for ruling.

Nothing in this order expresses any view on whether the County's motion to compel should be granted or denied, whether further responses should be ordered, whether RFAs should be deemed admitted, or whether sanctions should be imposed. Those determinations shall be made by the discovery referee in the first instance under the existing reference order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
